DISCLAIMER: This is an interim text of the non-confidential version of the commitments in Case M.11383 – COOPER / VIATRIS (EUROPEAN OTC BUSINESS). Parts of this text have been edited to ensure that confidential information is not disclosed; those parts are enclosed in square brackets. The text is made available for information purposes only and does not constitute an official publication. The full text of the decision and the commitments in Annex will be published on DG Competition's website.

CASE M.11383 – COOPER / VIATRIS (EUROPEAN OTC BUSINESS)

COMMITMENTS TO THE EUROPEAN COMMISSION

Pursuant to Article 6(2) of Council Regulation (EC) No 139/2004 (the "**Merger Regulation**"), Cooper Consumer Health S.A.S. ("**Cooper**") and Viatris Inc. ("**Viatris**") hereby enter into the following Commitments (the "**Commitments**") vis-à-vis the European Commission (the "**Commission**") with a view to rendering the acquisition by Cooper of sole control of the European over-the-counter ("**OTC**") business of Viatris (the "**Proposed Transaction**") compatible with the internal market and the functioning of the EEA Agreement.

This text shall be interpreted in light of the Commission's decision pursuant to Articles 6(1)(b) and 6(2) of the Merger Regulation to declare the Proposed Transaction compatible with the internal market and the functioning of the EEA Agreement (the "**Decision**"), in the general framework of European Union law, in particular in light of the Merger Regulation, and by reference to the Commission Notice on remedies acceptable under Council Regulation (EC) No 139/2004 and under Commission Regulation (EC) No 802/2004 (the "**Remedies Notice**").

Section A. Definitions

1. For the Commitments, the following terms shall have the following meaning:

Affiliated Undertakings: undertakings controlled by the Parties and/or by the ultimate parents of the Parties, whereby the notion of control shall be interpreted pursuant to Article 3 of the Merger Regulation and in light of the Commission Consolidated Jurisdictional Notice under Council Regulation (EC) No 139/2004 on the control of concentrations between undertakings (the "**Consolidated Jurisdictional Notice**").

Assets: the assets that contribute to the current operation or are necessary to ensure the viability and competitiveness of the Divestment Businesses as indicated in Section B, paragraph 6.1 (a), (b) and (c) and paragraph 6.2 (a), (b) and (c) and described more in detail in the Schedules.

Bebegel Divestment Business: the Divestment Business described in more detail in Schedule A.

Bebegel Divestment Business Closing: the transfer of the legal title to the Bebegel Divestment Business to the Purchaser.

Closings: the Bebegel Divestment Business Closing and the Otowaxol Divestment Business Closing, and "Closing" shall mean any one of the Closings, as relevant.

Closing Period: for each Divestment Business, the period of [time period] from the approval of the Purchaser and the terms of sale by the Commission for that Divestment Business.

Commission: European Commission.

Commitments: these commitments offered by the Parties to the Commission.

Completion: the closing of the Proposed Transaction.

Confidential Information: any business secrets, know-how, commercial information, or any other information of a proprietary nature that is not in the public domain.

Conflict of Interest: any conflict of interest that impairs the Trustee's objectivity and independence in discharging its duties under the Commitments.

Cooper: Cooper Consumer Health S.A.S.

Decision: the Commission's decision pursuant to Article 6(1)(b) and Article 6(2) of the Merger Regulation to declare the Proposed Transaction compatible with the internal market and the functioning of the EEA Agreement.

Divestment Businesses: the Bebegel Divestment Business and the Otowaxol Divestment Business, and "**Divestment Business**" shall mean any one of the Divestment Businesses, as relevant.

Divestiture Trustee: one or more natural or legal person(s) who is/are approved by the Commission and appointed by Cooper and who has/have received from Cooper the exclusive Trustee mandate to sell the Divestment Businesses to one or more Purchasers at no minimum price.

Effective Date: the date of adoption of the Decision.

First Divestiture Period: the period of [time period] from the Effective Date.

Hold Separate Manager: the person appointed by Cooper to manage the day-to-day operations of the Divestment Businesses under the supervision of the Monitoring Trustee.

Key Personnel: all personnel necessary to maintain the viability and competitiveness of the Divestment Businesses, as listed in the Schedules, including the Hold Separate Manager.

Merger Regulation: Council Regulation (EC) No. 139/2004.

Monitoring Trustee: one or more natural or legal person(s) approved by the Commission and appointed by Cooper, and who has the duty to monitor Cooper’s compliance with the conditions and obligations attached to the Decision.

Notifying Party: Cooper Consumer Health S.A.S.

OTC: Over-the-counter.

Otowaxol Divestment Business: the Divestment Business described in more detail in Schedule B.

Otowaxol Divestment Business Closing: the transfer of the legal title to the Otowaxol Divestment Business to the Purchaser.

Parties: Cooper and Viatris.

Personnel: the staff currently employed in relation to and required to maintain the viability of the Divestment Businesses.

Proposed Transaction: Cooper's proposed acquisition of sole control of the European OTC business of Viatris.

Purchaser(s): one or more entities approved by the Commission as the acquirer(s) of one or both of the Divestment Businesses in accordance with the criteria set out in Section D.

Purchaser Criteria: the criteria laid down in paragraph 16 of these Commitments that the Purchaser(s) must fulfil in order to be approved by the Commission.

Remedies Notice: Commission Regulation (EC) No 802/2004.

Schedules: the schedules to these Commitments describing more in detail the Divestment Businesses.

Trustee(s): the Monitoring Trustee and/or the Divestiture Trustee as the case may be.

Trustee Divestiture Period: the period of [time period] from the end of the First Divestiture Period.

Viatris: Viatris Inc. a corporation incorporated under the laws of the state of Delaware, the United States of America, with its corporate seat in Delaware, the United States of America.

Section B. The commitment to divest and the Divestment Business

Commitment to divest

2. In order to maintain effective competition, the Parties commit to divest, or procure the divestiture of, the Bebegel Divestment Business and Otowaxol Divestment Business by the end of the Trustee Divestiture Period as a going concern to a Purchaser or Purchasers on terms of sale approved by the Commission in accordance with the procedure described in paragraph 17 of these Commitments.

3. To carry out the divestiture, the Parties commit to finding a Purchaser or Purchasers and to enter into a final binding sale and purchase agreement with Cooper for the sale of the Divestment Businesses within the First Divestiture Period. If Cooper has not entered into such an agreement at the end of the First Divestiture Period in relation to either Divestment Business, Cooper shall grant the Divestiture Trustee an exclusive mandate to sell the relevant Divestment Business in accordance with the procedure described in paragraph 29 in the Trustee Divestiture Period and subject to Completion.

4. The Parties shall be deemed to have complied with this commitment if:

   (a) by the end of the Trustee Divestiture Period, Cooper or the Divestiture Trustee has entered into a final binding sale and purchase agreement(s) and the Commission approves the proposed Purchaser(s) and the terms of sale as being consistent with these Commitments in accordance with the procedure described in paragraph 17; and

   (b) the Closings take place within the Closing Period.

   Following Completion, Viatris will only remain bound by paragraphs 6, 7, 11, 36, 37, 38, 42 and 43 of these Commitments.

5. In order to maintain the structural effect of the Commitments, the Notifying Party shall, for a period of 10 years after Closing of the relevant Divestment Business, not acquire, whether directly or indirectly, the possibility of exercising influence (as defined in paragraph 43 of the Remedies Notice, footnote 3) over the whole or part of the Divestment Business, unless, following the submission of a reasoned request from the Notifying Party showing good cause and accompanied by a report from the Monitoring Trustee (as provided in paragraph 43 of these Commitments), the Commission finds that the structure of the market has changed to such an extent that the absence of influence over the Divestment Business is no longer necessary to render the proposed concentration compatible with the internal market.

Structure and definition of the Divestment Businesses

6. The Divestment Businesses comprise the Bebegel Divestment Business and the Otowaxol Divestment Business:

   6.1. The legal and functional structure of the Bebegel Divestment Business as operated to date is described in Schedule A. The Bebegel Divestment Business, described in more detail in Schedule A, includes all assets and staff that contribute to the current

operation or are necessary to ensure the viability and competitiveness of the Bebegel Divestment Business, in particular:

(a) all tangible and intangible assets (including intellectual property rights);
(b) all licences, permits and authorisations issued by any governmental organisation for the benefit of the Bebegel Divestment Business;
(c) all contracts, commitments and customer orders of the Bebegel Divestment Business; all customer, credit and other records of the Bebegel Divestment Business;
(d) all advertising, marketing, sales, publicity and presentational materials related to the Bebegel Divestment Business, as applicable; and
(e) a full transfer of any trademarks related to the Bebegel Divestment Business and relating to any EU Member State or States except, at the Purchaser's option, trademarks relating to France and French Polynesia.

In addition, the Parties will endeavour on a best-efforts basis to obtain the assignment (at the Purchaser's option) of the existing manufacturing contracts for the Bebegel Divestment Business on substantially the same terms and conditions (including price) or, in the event that consent for the assignment cannot be obtained on substantially the same terms and conditions (including price) and, at the Purchaser's option, the benefit of back-to-back arrangements for the supply by Cooper of the products to the Purchaser for the duration of the relevant contracts and, in any case, for no longer than three years.

6.2. The legal and functional structure of the Otowaxol Divestment Business as operated to date is described in Schedule B. The Otowaxol Divestment Business, described in more detail in Schedule B, includes all assets and staff that contribute to the current operation or are necessary to ensure the viability and competitiveness of the Otowaxol Divestment Business, in particular:

(a) all tangible and intangible assets (including intellectual property rights);
(b) all licences, permits and authorisations issued by any governmental organisation for the benefit of the Otowaxol Divestment Business;
(c) all contracts, commitments and customer orders of the Otowaxol Divestment Business; all customer, credit and other records of the Otowaxol Divestment Business;
(d) all advertising, marketing, sales, publicity and presentational materials related to the Otowaxol Divestment Business, as applicable; and
(e) a full transfer of any trademarks related to the Otowaxol Divestment Business and relating to any EU Member State or States except, at the Purchaser's option, the trademark relating to Ireland.

In addition, the Parties will endeavour on a best-efforts basis to obtain the assignment (at the Purchaser's option) of the existing manufacturing contracts for the Otowaxol Divestment Business on substantially the same terms and conditions (including price) or, in the event that consent for the assignment cannot be obtained on substantially the same terms and conditions (including price) and, at the Purchaser's option, the benefit of back-to-back arrangements for the supply by Cooper of the products to the Purchaser for the duration of the relevant contracts and, in any case, for no longer than three years.

Section C. Related commitments

Preservation of viability, marketability and competitiveness

7. The Parties shall from the Effective Date until the Closings, preserve or procure the preservation of the economic viability, marketability and competitiveness of the Bebegel Divestment Business (including in France) and the Otowaxol Divestment Business (including in Ireland), in accordance with good business practice, and shall minimise as far as possible any risk of loss of competitive potential of the Divestment Businesses. In particular, the Parties undertake:

   (a) not to carry out any action that might have a significant adverse impact on the value, management or competitiveness of the Divestment Businesses or that might alter the nature and scope of activity, or the industrial or commercial strategy or the investment policy of the Divestment Businesses;
   (b) to make available, or procure to make available, sufficient resources for the development of the Divestment Businesses, on the basis and continuation of the existing business plans; and
   (c) to take all reasonable steps, or procure that all reasonable steps are being taken, including appropriate incentive schemes (based on industry practice), to encourage all Key Personnel to remain with the Divestment Businesses, and not to solicit or move any Personnel to the Parties' remaining business. Where, nevertheless, individual members of the Key Personnel exceptionally leave the Divestment Businesses, Cooper shall provide a reasoned proposal to replace the person or persons concerned to the Commission and the Monitoring Trustee. Cooper must be able to demonstrate to the Commission that the replacement is well suited to carry out the functions exercised by those individual members of the Key Personnel. The replacement shall take place under the supervision of the Monitoring Trustee, who shall report to the Commission.

Hold-separate obligations

8. Cooper commit(s), from the Effective Date until Closings, to keep the Divestment Businesses separate from the business it is retaining and to ensure that unless explicitly permitted under these Commitments: (i) management and staff of the business(es) retained by Cooper have no involvement in the Divestment Businesses; (ii) the Key Personnel and Personnel of the Divestment Businesses have no involvement in any business retained by Cooper and do not report to any individual outside the Divestment Businesses.

9. Until Closings, Cooper shall assist the Monitoring Trustee in ensuring that the Divestment Businesses are managed as a distinct and saleable businesses separate from the retained business. Immediately after the adoption of the Decision, Cooper shall appoint a Hold Separate Manager. The Hold Separate Manager shall manage the Divestment Businesses independently and in the best interest of the business with a view to ensuring their continued economic viability, marketability and competitiveness and their independence from the retained business. The Hold Separate Manager shall closely cooperate with and report to the Monitoring Trustee and, if applicable, the Divestiture Trustee. Any replacement of the Hold Separate Manager shall be subject to the procedure

laid down in paragraph 7(c) of these Commitments. The Commission may, after having heard Cooper, require Cooper to replace the Hold Separate Manager.

Ring-fencing

10. Cooper shall implement, or procure to implement, all necessary measures to ensure that it does not, after the Effective Date, obtain any Confidential Information relating to the Divestment Businesses and that any such Confidential Information obtained by Cooper before the Effective Date will be eliminated and not be used by Cooper. In particular, the participation of the Divestment Businesses in any central information technology network shall be severed to the extent possible, without compromising the viability of the Divestment Businesses. The Parties may obtain or keep information relating to the Divestment Businesses which is reasonably necessary for the divestiture of the Divestment Businesses or the disclosure of which to the Parties is required by law.

Non-solicitation clause

11. The Parties undertake, subject to customary limitations, not to solicit, and to procure that Affiliated Undertakings do not solicit, the Key Personnel transferred with the Divestment Businesses for a period of two years after Closings.

Due diligence

12. In order to enable potential purchasers to carry out a reasonable due diligence of the Divestment Businesses, the Parties shall, subject to customary confidentiality assurances and dependent on the stage of the divestiture process:

    (a) provide to potential purchasers sufficient information as regards the Divestment Businesses; and
    (b) provide to potential purchasers sufficient information relating to the Personnel and allow them reasonable access to the Personnel.

Reporting

13. The Parties shall submit written reports in English on potential purchasers of the Divestment Businesses and developments in the negotiations with such potential purchasers to the Commission and the Monitoring Trustee no later than 10 days after the end of every month following the Effective Date (or otherwise at the Commission's request).

14. The Parties shall submit a list of all potential purchasers having expressed interest in acquiring the Divestment Businesses to the Commission at each and every stage of the divestiture process, as well as a copy of all the offers made by potential purchasers within 5 days of their receipt.

15. The Parties shall inform the Commission and the Monitoring Trustee on the preparation of the data room documentation and the due diligence procedure and shall submit a copy of any information memorandum to the Commission and the Monitoring Trustee before sending the memorandum out to potential purchasers.

Section D. The Purchaser

16. In order to be approved by the Commission, the Purchaser(s) must fulfil the following criteria:

    (a) The Purchaser(s) shall be independent of and unconnected to the Notifying Party and their Affiliated Undertakings (this being assessed having regard to the situation following the divestiture);
    (b) The Purchaser(s) shall have the financial resources, proven expertise and incentive to maintain and develop the relevant Divestment Business as a viable and active competitive force in competition with Cooper and other competitors;
    (c) The acquisition of the relevant Divestment Business by the Purchaser(s) must neither be likely to create, in light of the information available to the Commission, *prima facie* competition concerns nor give rise to a risk that the implementation of the Commitments will be delayed. In particular, the Purchaser(s) must reasonably be expected to obtain all necessary approvals from the relevant regulatory authorities for the acquisition of the Divestment Businesses; and
    (d) The Purchaser of the Bebegel Divestment Business must have a sales and marketing presence and access to an appropriate distribution network in Portugal in the relevant sales channels (including wholesalers, hospitals and pharmacies) and the Purchaser of the Otowaxol Divestment Business must have a sales and marketing presence and access to an appropriate distribution network in Germany in the relevant sales channels (including wholesalers and pharmacies).

17. The final binding sale and purchase agreement(s) (as well as any ancillary agreements) relating to the divestment of the Divestment Businesses shall be conditional on the Commission's approval. When Cooper has reached an agreement with a purchaser, it shall submit a fully documented and reasoned proposal, including a copy of the final agreement(s), within one week to the Commission and the Monitoring Trustee. Cooper must be able to demonstrate to the Commission that the purchaser(s) fulfils the Purchaser Criteria and that the Divestment Businesses is being sold in a manner consistent with the Commission's Decision and the Commitments. For the approval, the Commission shall verify that the purchaser fulfils the Purchaser Criteria and that the Divestment Businesses is being sold in a manner consistent with the Commitments including their objective to bring about a lasting structural change in the market. The Commission may approve the sale of the Divestment Businesses without one or more Assets or parts of the Personnel, or by substituting one or more Assets or parts of the Personnel with one or more different assets or different personnel, if this does not affect the viability and competitiveness of the Divestment Businesses after the sale, taking account of the proposed purchaser.

Section E. Trustee

I. Appointment procedure

18. Cooper shall appoint a Monitoring Trustee to carry out the functions specified in these Commitments for a Monitoring Trustee. The Notifying Party commit(s) not to close the Proposed Transaction before the appointment of a Monitoring Trustee.

19. If Cooper has not entered into a binding sale and purchase agreement regarding either Divestment Business one month before the end of the First Divestiture Period or if the

Commission has rejected a purchaser proposed by Cooper at that time or thereafter, Cooper shall appoint a Divestiture Trustee in respect of the relevant Divestment Business. The appointment of the Divestiture Trustee shall take effect upon the commencement of the Trustee Divestiture Period.

20. The Trustee shall:
    (a) at the time of appointment, be independent of the Notifying Party and its Affiliated Undertakings;
    (b) possess the necessary qualifications to carry out its mandate, for example have sufficient relevant experience as an investment banker or consultant or auditor; and
    (c) neither have nor become exposed to a Conflict of Interest.

21. The Trustee shall be remunerated by the Notifying Party in a way that does not impede the independent and effective fulfilment of its mandate. In particular, where the remuneration package of a Divestiture Trustee includes a success premium linked to the final sale value of the Divestment Business, such success premium may only be earned if the divestiture takes place within the Trustee Divestiture Period.

Proposal by Cooper

22. No later than two weeks after the Effective Date, Cooper shall submit the name or names of one or more natural or legal persons whom Cooper proposes to appoint as the Monitoring Trustee to the Commission for approval. No later than one month before the end of the First Divestiture Period or on request by the Commission, Cooper shall submit a list of one or more persons whom Cooper proposes to appoint as Divestiture Trustee to the Commission for approval. The proposal shall contain sufficient information for the Commission to verify that the person or persons proposed as Trustee fulfil the requirements set out in paragraph 20 and shall include:
    (a) the full terms of the proposed mandate, which shall include all provisions necessary to enable the Trustee to fulfil its duties under these Commitments;
    (b) the outline of a work plan which describes how the Trustee intends to carry out its assigned tasks;
    (c) an indication whether the proposed Trustee is to act as both Monitoring Trustee and Divestiture Trustee or whether different trustees are proposed for the two functions.

Approval or rejection by the Commission

23. The Commission shall have the discretion to approve or reject the proposed Trustee(s) and to approve the proposed mandate subject to any modifications it deems necessary for the Trustee to fulfil its obligations. If only one name is approved, Cooper shall appoint or cause to be appointed the person or persons concerned as Trustee, in accordance with the mandate approved by the Commission. If more than one name is approved, Cooper shall be free to choose the Trustee to be appointed from among the names approved. The Trustee shall be appointed within one week of the Commission's approval, in accordance with the mandate approved by the Commission.

New proposal by Cooper

24. If all the proposed Trustees are rejected, Cooper shall submit the names of at least two more natural or legal persons within one week of being informed of the rejection, in accordance with paragraphs 18 and 23 of these Commitments.

Trustee nominated by the Commission

25. If all further proposed Trustees are rejected by the Commission, the Commission shall nominate a Trustee, whom Cooper shall appoint, or cause to be appointed, in accordance with a trustee mandate approved by the Commission.

II. Functions of the Trustee

26. The Trustee shall assume its specified duties and obligations in order to ensure compliance with the Commitments. The Commission may, on its own initiative or at the request of the Trustee or Cooper, give any orders or instructions to the Trustee in order to ensure compliance with the conditions and obligations attached to the Decision.

Duties and obligations of the Monitoring Trustee

27. The Monitoring Trustee shall:

(i) propose in its first report to the Commission a detailed work plan describing how it intends to monitor compliance with the obligations and conditions attached to the Decision.

(ii) oversee, in close co-operation with the Hold Separate Manager, the on-going management of the relevant Divestment Business with a view to ensuring its continued economic viability, marketability and competitiveness and monitor compliance by Cooper with the conditions and obligations attached to the Decision. To that end the Monitoring Trustee shall:

  (a) monitor the preservation of the economic viability, marketability and competitiveness of the Divestment Business, and the keeping separate of the Divestment Business from the retained business, in accordance with paragraphs 7 and 8 of these Commitments;

  (b) supervise the management of the Divestment Business as a distinct and saleable entity, in accordance with paragraph 9 of these Commitments;

  (c) with respect to Confidential Information:

  - determine all necessary measures to ensure that Cooper does not after the Effective Date obtain any Confidential Information relating to the Divestment Business,
  - in particular strive for the severing of the Divestment Business' participation in a central information technology network to the extent possible, without compromising the viability of the Divestment Business,
  - make sure that any Confidential Information relating to the Divestment Business obtained by Cooper before the Effective Date is eliminated and will not be used by Cooper and

- decide whether such information may be disclosed to or kept by Cooper as the disclosure is reasonably necessary to allow Cooper to carry out the divestiture or as the disclosure is required by law;

(d) monitor the splitting of assets and the allocation of Personnel between the Divestment Business and Cooper or its Affiliated Undertakings;

(iii) propose to Cooper such measures as the Monitoring Trustee considers necessary to ensure Cooper's compliance with the conditions and obligations attached to the Decision, in particular the maintenance of the full economic viability, marketability or competitiveness of the Divestment Business, the holding separate of the Divestment Business and the non-disclosure of competitively sensitive information;

(iv) review and assess potential purchasers as well as the progress of the divestiture process and verify that, dependent on the stage of the divestiture process:

(a) potential purchasers receive sufficient and correct information relating to the Divestment Business and the Personnel in particular by reviewing, if available, the data room documentation, the information memorandum and the due diligence process, and

(b) potential purchasers are granted reasonable access to the Personnel;

(v) act as a contact point for any requests by third parties, in particular potential purchasers, in relation to the Commitments;

(vi) provide to the Commission, sending Cooper a non-confidential copy at the same time, a written report within 15 days after the end of every month that shall cover the operation and management of the Divestment Business as well as the splitting of assets and the allocation of Personnel so that the Commission can assess whether the business is held in a manner consistent with the Commitments and the progress of the divestiture process as well as potential purchasers;

(vii) promptly report in writing to the Commission, sending Cooper a non-confidential copy at the same time, if it concludes on reasonable grounds that Cooper is failing to comply with these Commitments;

(viii) within one week after receipt of the documented proposal referred to in paragraph 17 of these Commitments, submit to the Commission, sending Cooper a non-confidential copy at the same time, a reasoned opinion as to the suitability and independence of the proposed purchaser and the viability of the Divestment Business after the Sale and as to whether the Divestment Business is sold in a manner consistent with the conditions and obligations attached to the Decision, in particular, if relevant, whether the sale of the Divestment Business without one or more Assets or not all of the Personnel affects the viability of the Divestment Business after the sale, taking account of the proposed purchaser; and

(ix) assume the other functions assigned to the Monitoring Trustee under the conditions and obligations attached to the Decision.

28. If the Monitoring and Divestiture Trustee are not the same legal or natural persons, the Monitoring Trustee and the Divestiture Trustee shall cooperate closely with each other during and for the purpose of the preparation of the Trustee Divestiture Period in order to facilitate each other's tasks.

Duties and obligations of the Divestiture Trustee

29. Within the Trustee Divestiture Period, the Divestiture Trustee shall sell at no minimum price the relevant Divestment Business to a purchaser or purchasers, provided that the Commission has approved both the purchaser(s) and the final binding sale and purchase

agreement(s) (and ancillary agreements) as in line with the Decision and the Commitments in accordance with paragraphs 16 and 17 of these Commitments. The Divestiture Trustee shall include in the sale and purchase agreement (as well as in any ancillary agreements) such terms and conditions as it considers appropriate for an expedient sale in the Trustee Divestiture Period. In particular, the Divestiture Trustee may include in the sale and purchase agreement such customary representations and warranties and indemnities as are reasonably required to effect the sale. The Divestiture Trustee shall protect the legitimate financial interests of Cooper, subject to Cooper's unconditional obligation to divest at no minimum price in the Trustee Divestiture Period.

30. In the Trustee Divestiture Period (or otherwise at the Commission's request), the Divestiture Trustee shall provide the Commission with a comprehensive monthly report written in English on the progress of the divestiture process. Such reports shall be submitted within 15 days after the end of every month with a simultaneous copy to the Monitoring Trustee and a non-confidential copy to Cooper.

III. Duties and obligations of Cooper and Viatris

31. The Parties shall provide and shall cause its advisors to provide the Trustee with all such co-operation, assistance and information as the Trustee may reasonably require to perform its tasks. The Trustee shall have full and complete access to any of the Parties' or the relevant Divestment Business' books, records, documents, management or other personnel, facilities, sites and technical information necessary for fulfilling its duties under the Commitments and the Parties and the Divestment Business shall provide the Trustee upon request with copies of any document. The Parties and the Divestment Business shall make available to the Trustee one or more offices on their premises and shall be available for meetings in order to provide the Trustee with all information necessary for the performance of its tasks.

32. The Parties shall provide the Monitoring Trustee with all managerial and administrative support that it may reasonably request on behalf of the management of the Divestment Business. This shall include all administrative support functions relating to the Divestment Business which are currently carried out at headquarters level. The Parties shall provide and shall cause its advisors to provide the Monitoring Trustee, on request, with the information submitted to potential purchasers, in particular give the Monitoring Trustee access to the data room documentation and all other information granted to potential purchasers in the due diligence procedure. The Parties shall inform the Monitoring Trustee on possible purchasers, submit lists of potential purchasers at each stage of the selection process, including the offers made by potential purchasers at those stages, and keep the Monitoring Trustee informed of all developments in the divestiture process.

33. Cooper shall grant or procure Affiliated Undertakings to grant comprehensive powers of attorney, duly executed, to the Divestiture Trustee to effect the sale (including ancillary agreements), the Closings and all actions and declarations which the Divestiture Trustee considers necessary or appropriate to achieve the sale and the Closings, including the appointment of advisors to assist with the sale process. Upon request of the Divestiture Trustee, Cooper shall cause the documents required for effecting the sale and the Closings to be duly executed.

34. Cooper shall indemnify the Trustee and its employees and agents (each an "***Indemnified Party***") and hold each Indemnified Party harmless against, and hereby agrees that an Indemnified Party shall have no liability to Cooper for, any liabilities arising out of the performance of the Trustee's duties under the Commitments, except to the extent that such liabilities result from the wilful default, recklessness, gross negligence or bad faith of the Trustee, its employees, agents or advisors.

35. At the expense of Cooper, the Trustee may appoint advisors (in particular for corporate finance or legal advice), subject to Cooper's approval (this approval not to be unreasonably withheld or delayed) if the Trustee considers the appointment of such advisors necessary or appropriate for the performance of its duties and obligations under the mandate, provided that any fees and other expenses incurred by the Trustee are reasonable. Should Cooper refuse to approve the advisors proposed by the Trustee the Commission may approve the appointment of such advisors instead, after having heard Cooper. Only the Trustee shall be entitled to issue instructions to the advisors. Paragraph 34 of these Commitments shall apply *mutatis mutandis*. In the Trustee Divestiture Period, the Divestiture Trustee may use advisors who served Cooper during the First Divestiture Period if the Divestiture Trustee considers this in the best interest of an expedient sale.

36. The Parties agree that the Commission may share Confidential Information proprietary to either of the Parties with the Trustee. The Trustee shall not disclose such information and the principles contained in Article 17 (1) and (2) of the Merger Regulation apply *mutatis mutandis*.

37. The Parties agree that the contact details of the Monitoring Trustee are published on the website of the Commission's Directorate-General for Competition and they shall inform interested third parties, in particular any potential purchasers, of the identity and the tasks of the Monitoring Trustee.

38. For a period of 10 years from the Effective Date, the Commission may request all information from the Parties that is reasonably necessary to monitor the effective implementation of these Commitments.

IV. <u>Replacement, discharge and reappointment of the Trustee</u>

39. If the Trustee ceases to perform its functions under the Commitments or for any other good cause, including the exposure of the Trustee to a Conflict of Interest:
    (a) the Commission may, after hearing the Trustee and Cooper, require Cooper to replace the Trustee; or
    (b) Cooper may, with the prior approval of the Commission, replace the Trustee.

40. If the Trustee is removed according to paragraph 39 of these Commitments, the Trustee may be required to continue in its function until a new Trustee is in place to whom the Trustee has effected a full hand over of all relevant information. The new Trustee shall be appointed in accordance with the procedure referred to in paragraphs 18-25 of these Commitments.

41. Unless removed according to paragraph 39 of these Commitments, the Trustee shall cease to act as Trustee only after the Commission has discharged it from its duties after all the Commitments with which the Trustee has been entrusted have been implemented.

However, the Commission may at any time require the reappointment of the Monitoring Trustee if it subsequently appears that the relevant remedies might not have been fully and properly implemented.

Section F. The review clause

42. The Commission may extend the time periods foreseen in these Commitments in response to a request from the Parties or, in appropriate cases, on its own initiative. Where a Party requests an extension of a time period, it shall submit a reasoned request to the Commission no later than one month before the expiry of that period, showing good cause. This request shall be accompanied by a report from the Monitoring Trustee, who shall, at the same time send a non-confidential copy of the report to the Parties. Only in exceptional circumstances shall the Parties be entitled to request an extension within the last month of any period.

43. The Commission may further, in response to a reasoned request from the Parties showing good cause waive, modify or substitute, in exceptional circumstances, one or more of the undertakings in these Commitments. This request shall be accompanied by a report from the Monitoring Trustee, who shall, at the same time send a non-confidential copy of the report to Cooper. The request shall not have the effect of suspending the application of the undertaking and, in particular, of suspending the expiry of any time period in which the undertaking has to be complied with.

Section G. Entry into force

44. The Commitments shall take effect upon the date of adoption of the Decision.

[signed]
duly authorised for and on behalf of Cooper Consumer Health S.A.S.

[signed]
duly authorised for and on behalf of Viatris Inc.

SCHEDULES

Schedule A (Bebegel)

1. The Bebegel Divestment Business consists of the rights, title and interests in Bebegel including the right to develop, manufacture and use Bebegel with a view to its sale and marketing in any form in Portugal and, at the Purchaser's option, in France. Bebegel is used to treat constipation in infants.

2. The Bebegel Divestment Business includes the transfer of all assets predominantly or exclusively used for the purposes of marketing Bebegel in Portugal and, at the Purchaser's option, in France. It includes in particular:

   (a) existing Bebegel finished product inventory, sales and promotional material to the extent available;

   (b) all Bebegel-related contracts, commitments, and customer records, meaning customer credit records, customer invoices, purchase orders and contact details, redacting from such material any information which is not related to Bebegel;[1]

   (c) the transfer of the marketing authorization for Bebegel in Portugal and, at the Purchaser's option, in France, including all relevant dossiers, as well as the information contained in the relevant full registration dossier(s), relating to the current and/or pending marketing authorizations available to the Parties;

   (d) an irrevocable, assignable, sub-licensable and royalty-free license for all relevant intellectual property rights, data books, records and effective arrangements for the transfer of all know-how to the extent that these are related to the development, manufacture, use of the Bebegel Divestment Business;

   (e) all advertising, marketing, sales, publicity and presentational materials related to the Bebegel Divestment Business, as applicable; and

   (f) a full transfer of any trademarks related to the Bebegel Divestment Business and relating to any EU Member State or States (set out at Table 1 below) except, at the Purchaser's option, trademarks relating to France and French Polynesia.

Table 1: Trademarks for the Bebegel Divestment Business

Trademark	Country	Application #	Application Date	Registration #	Registration Date	Renewal Date	Status
BEBEGEL	Portugal	187492	09/27/1974	187492	02/10/1982	09/27/2024	Registered
BEBEGEL	France	1284471	09/19/1984	1284471	09/19/1984	09/19/2024	Registered
BEBEGEL	French Polynesia	1284471	09/19/1984	1284471	09/19/1984	09/19/2024	Registered

[1] The Parties will include customer lists and records in the Bebegel Divestment Business, but not provide any accounts receivable or payable.

3. The Parties will transfer all information (orders, price, etc.) concerning their relationship regarding Bebegel with contract manufacturer [name of contract manufacturer] to the Purchaser in accordance with applicable law. The Parties will endeavour on a best-efforts basis to obtain the assignment (at the Purchaser's option) of the existing manufacturing contracts for the Bebegel Divestment Business on substantially the same terms and conditions (including price) or, in the event that consent for the assignment cannot be obtained on substantially the same terms and conditions (including price) and, at the Purchaser's option, the benefit of back-to-back arrangements for the supply by Cooper of the products to the Purchaser for the duration of the relevant contracts and, in any case, for no longer than three years.

4. In relation to the existing tender contracts, the Parties will transfer all information (orders; price; etc.). The Parties commit to use their best efforts to support the Purchaser to obtain the hospital's consent for the transfer the tender contracts.

5. The Parties commit to use their best efforts to cooperate with the Purchaser to effectuate the transfer of the Bebegel Divestment Business and to undertake all regulatory changes that would be required as a result of such transfer. Until transfer of the Bebegel Divestment Business, Cooper will bear the costs for updates to maintain the current registration of the dossier of the Bebegel Divestment Business. In addition, Cooper will bear the dossier preparation and regulatory filing costs for all the updates of the dossier triggered by the transfer of the Bebegel Divestment Business to the Purchaser.

6. The Bebegel Divestment Business shall not include:
   (a) any manufacturing facility;
   (b) raw materials;
   (c) any other asset not part of the Bebegel Divestment Business or which is used in relation to a business of the Parties other than the Bebegel Divestment Business; and
   (d) the "Viatris" name, Viatris trademark and Viatris trade dress or trade dress of any of its subsidiaries.

7. If there are any assets or personnel which are not covered by paragraph 2 of this Schedule but which are both used (exclusively or not) in the Bebegel Divestment Business and necessary for the continued viability and competitiveness of the Bebegel Divestment Business, that asset or an adequate substitute will be offered by Cooper to the Purchaser.

Schedule B (Otowaxol)

8. The Otowaxol Divestment Business consists of the rights, title and interests in Otowaxol including the right to develop, manufacture and use Otowaxol, with a view to its sale and marketing in any form in Germany and, at the Purchaser's option, in Ireland. Otowaxol is used to remove excess earwax and earwax build-up.

9. The Otowaxol Divestment Business includes the transfer of all assets predominantly or exclusively used for the purposes of marketing Otowaxol in Germany and, at the Purchaser's option, in Ireland. It includes in particular:

(a) existing Otowaxol finished product inventory, sales and promotional material to the extent available;
(b) all Otowaxol-related contracts, commitments, and customer records, meaning customer credit records, customer invoices, purchase orders and contact details, redacting from such material any information which is not related to Otowaxol;[2]
(c) an irrevocable, assignable, sub-licensable and royalty-free license for all relevant intellectual property rights, data books, records and effective arrangements for the transfer of all know-how to the extent that these are related to the development, manufacture, use of the Otowaxol Divestment Business;
(d) all advertising, marketing, sales, publicity and presentational materials related to the Otowaxol Divestment Business, as applicable; and
(e) a full transfer of any trademarks related to the Otowaxol Divestment Business (including Otowaxol and Waxsol) and relating to any EU Member State or States (set out at Table 2 below) except, at the Purchaser's option, the trademark relating to Ireland.

10. The Parties will transfer all information (orders, price, etc.) concerning their relationship regarding Otowaxol with contract manufacturer [name of contract manufacturer] to the Purchaser in accordance with applicable law. The Parties will endeavour on a best-efforts basis to obtain the assignment (at the Purchaser's option) of the existing manufacturing contracts for the Otowaxol Divestment Business on substantially the same terms and conditions (including price) or, in the event that consent for the assignment cannot be obtained on substantially the same terms and conditions (including price) and, at the Purchaser's option, the benefit of back-to-back arrangements for the supply by Cooper of the products to the Purchaser for the duration of the relevant contracts and, in any case, for no longer than three years.

11. The Parties commit to use their best efforts to cooperate with the Purchaser to effectuate the transfer of the Otowaxol Divestment Business and to undertake all regulatory changes that would be required as a result of such transfer. Until transfer of the Otowaxol Divestment Business, Cooper will bear the costs for updates to maintain the current registration of the dossier of the Otowaxol Divestment Business. In addition, Cooper will bear the dossier preparation and regulatory filing costs for all the updates of the dossier triggered by the transfer of the Otowaxol Divestment Business to the Purchaser.

12. The Otowaxol Divestment Business shall not include:
(a) any manufacturing facility;
(b) raw materials;
(c) any other asset not part of the Otowaxol Divestment Business or which is used in relation to a business of the Parties other than the Otowaxol Divestment Business; and
(d) the "Viatris" name, Viatris trademark and Viatris trade dress or trade dress of any of its subsidiaries.

[2] The Parties will include customer lists and records in the Otowaxol Divestment Business, but not provide any accounts receivable or payable.

13. If there are any assets or personnel which are not covered by paragraph 9 of this Schedule but which are both used (exclusively or not) in the Otowaxol Divestment Business and necessary for the continued viability and competitiveness of the Otowaxol Divestment Business, that asset or an adequate substitute will be offered by Cooper to the Purchaser.

Table 2: Trademarks for the Otowaxol Divestment Business

Trademark	**Country**	**Application #**	**Application Date**	**Registration #**	**Registration Date**	**Renewal Date**	**Status**
OTOWAXOL	Germany	N15578	10/11/1977	976545	09/18/1978	10/31/2027	Registered
WAXSOL	Ireland	B72169	06/02/1967	B72169	06/02/1967	06/02/2032	Registered
OTOWAXOL	World Intellectual Property Organization (WIPO), covers Austria, Benelux, Morocco Switzerland	445517	06/18/1979	445517	06/18/1979	06/18/2029	Registered
WAXSOL	Malta	12478	02/05/1976	12478			
WAXSOL	Greece	43374	01/23/1970	43374			
WAXSOL	Benelux Office for Intellectual Property (BOIP)	0331345	03/05/1975	0331345			
WAXSOL	France	1410977	05/27/1987	1410977			
WAXSOL	WIPO, covers Austria, BOIP, Switzerland, Monaco	435287B	02/03/1978	435287B			